

[1 EDW. 8. & *Provisional Orders (Marriages)* [Ch. lxii.]
1 GEO. 6.] *Confirmation Act, 1937.*



CHAPTER lxii.

An Act to confirm certain Provisional Orders made by one of His Majesty's Principal Secretaries of State under the Marriages Validity (Provisional Orders) Acts 1905 and 1924. [6th July 1937.] A.D. 1937.

WHEREAS under the provisions of the Marriages Validity (Provisional Orders) Acts 1905 and 1924 one of His Majesty's Principal Secretaries of State has made Provisional Orders which need confirmation by Parliament : 5 Edw. 7. c. 23. 14 & 15 Geo. 5. c. 20.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Orders of the Secretary of State which are set out in the schedule to this Act are hereby confirmed and shall have full validity and force. Orders in schedule confirmed.

2. This Act may be cited as the Provisional Orders (Marriages) Confirmation Act 1937. Short title.

A.D. 1937.

SCHEDULE.

*Leighton
Buzzard
Baptist
Church Order.*

LEIGHTON BUZZARD BAPTIST CHURCH ORDER.

WHEREAS power is given to a Secretary of State by the Marriages Validity (Provisional Orders) Acts 1905 and 1924 in the case of marriages solemnized in England which appear to him to be invalid or of doubtful validity by reason of some informality to make a Provisional Order for the purpose of removing the invalidity or doubt and to include in such Order supplemental incidental and consequential provisions including provisions for relieving from liability ministers who have solemnized the marriages to which the Order relates :

And whereas on the thirteenth day of October one thousand nine hundred and thirty-four the twenty-third day of February one thousand nine hundred and thirty-five and the twenty-second day of April one thousand nine hundred and thirty-five marriages were solemnized in the Baptist Church in Lake Street Leighton Buzzard a registered building in the registration district of Leighton Buzzard in the county of Bedford :

And whereas the aforesaid marriages were solemnized without the presence of any registrar and not in the presence of a duly authorised person and the particulars relating to the said marriages were not registered in the manner provided by the Marriage Act 1898 :

61 & 62 Vict.
c. 58.

And whereas it is expedient in the circumstances aforesaid to remove all doubt touching the validity of such marriages and to make certain supplemental incidental and consequential provisions :

Now therefore I the Right Honourable Sir John Simon one of His Majesty's Principal Secretaries of State in pursuance of the powers conferred on me by the said Marriages Validity (Provisional Orders) Acts 1905 and 1924 do hereby order that on and after the date of the Act of Parliament confirming this Order the following provisions shall have effect :—

- (1) the marriages solemnized on the thirteenth day of October one thousand nine hundred and thirty-four the twenty-third day of February one thousand nine hundred and thirty-five and the twenty-second day of April one thousand nine hundred and thirty-five in the Baptist Church in Lake Street Leighton Buzzard in the registration district of Leighton Buzzard in the county of Bedford shall be and shall be deemed to have

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been as valid as if the said marriages had been solemnized in the presence of a duly authorized person and as if the particulars relating to the said marriages had been duly registered in the manner provided by the Marriage Act 1898 :

A.D. 1937.

—
*Leighton
Buzzard
Baptist
Church Order.*

- (2) A minister who has solemnized any marriage referred to in the first paragraph of this Order shall not be liable to any proceedings for penalties whatsoever by reason of having solemnized the marriages :
- (3) The registers of the marriages so solemnized or copies of the registers shall be received in all courts as evidence of those marriages in the same manner as registers of marriages duly solemnized or copies thereof are by law receivable in evidence.

BRIGNALL CHURCH ORDER.

*Brignall
Church Order.*

WHEREAS power is given to a Secretary of State by the Marriages Validity (Provisional Orders) Acts 1905 and 1924 in the case of marriages solemnized in England which appear to him to be invalid or of doubtful validity by reason of some informality to make a Provisional Order for the purpose of removing the invalidity or doubt and to include in such Order supplemental incidental and consequential provisions including provisions for relieving from liability ministers who have solemnized the marriages to which the Order relates :

And whereas pursuant to a Scheme prepared by the Ecclesiastical Commissioners under the Union of Benefices Act 1919 which was affirmed by Order of His Majesty in Council dated the thirty-first day of January one thousand nine hundred and twenty-two and duly published in the London Gazette on the thirty-first day of January one thousand nine hundred and twenty-two the benefice of Rokeby and the benefice of Brignall both of which are situate in the county of York and the diocese of Ripon were on the third day of June one thousand nine hundred and twenty-nine permanently united to form one benefice under the style of the united benefice of Rokeby with Brignall :

9 & 10
Geo. 5. c. 98.

And whereas the parishes of the said benefices were on the last mentioned date united into one parish for ecclesiastical purposes and the church of the parish of Rokeby was designated the parish church of the united parish :

And whereas the church of the former parish of Brignall was licensed for the solemnization of marriages on the fourteenth day of October one thousand nine hundred and thirty-six :

A.D. 1937.

—
*Brignall
Church Order.*

And whereas divers marriages have been solemnized therein between the third day of June one thousand nine hundred and twenty-nine and the fourteenth day of October one thousand nine hundred and thirty-six :

And whereas it is expedient in the circumstances aforesaid to remove all doubt touching the validity of the said marriages solemnized at the said church of the former parish of Brignall and to make certain supplemental incidental and consequential provisions :

Now therefore I the Right Honourable Sir John Simon one of His Majesty's Principal Secretaries of State in pursuance of the powers conferred on me by the said Marriages Validity (Provisional Orders) Acts 1905 and 1924 do hereby order that on and after the date of the Act of Parliament confirming this Order the following provisions shall have effect :—

- (1) All banns of matrimony and marriages published and solemnized between the second day of June one thousand nine hundred and twenty-nine and the fifteenth day of October one thousand nine hundred and thirty-six at the church of the former parish of Brignall in the county of York and diocese of Ripon shall be deemed to have been as valid as if they had been published and solemnized in a church in which such banns might be published and marriages solemnized lawfully :
- (2) The minister who has solemnized any marriage referred to in the first paragraph of this Order shall not be liable to any proceedings for penalties whatsoever or to any ecclesiastical censure by reason of having solemnized such marriage :
- (3) The registers of the marriages so solemnized or copies of the registers shall be received in all courts as evidence of these marriages in the same manner as registers of marriages duly solemnized or copies thereof are by law receivable in evidence.

SAINT JOHN SHOTLEY ORDER.

*Saint John
Shotley Order.*

WHEREAS power is given to a Secretary of State by the Marriages Validity (Provisional Orders) Acts 1905 and 1924 in the case of marriages solemnized in England which appear to him to be invalid or of doubtful validity by reason of some informality to make a Provisional Order for the purpose of removing the invalidity or doubt and to include in such Order supplemental incidental and consequential provisions including provisions for relieving from liability ministers who have solemnized the marriages to which the Order relates :

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And whereas the church of Saint John in the parish of Shotley in the county of Northumberland and the diocese of Newcastle was duly consecrated for the performance of divine service on the thirtieth day of August one thousand eight hundred and thirty-seven but the church was not licensed for the solemnization of marriages until the eleventh day of November one thousand nine hundred and thirty-six :

A.D. 1937.

—
*Saint John
Shotley Order.*

And whereas divers marriages have nevertheless been solemnized in the said church :

And whereas it is expedient in the circumstances aforesaid to remove all doubt touching the validity of marriages solemnized in the said church of Saint John Shotley and to make certain supplemental incidental and consequential provisions :

Now therefore I the Right Honourable Sir John Simon one of His Majesty's Principal Secretaries of State in pursuance of the powers conferred on me by the said Marriages Validity (Provisional Orders) Acts 1905 and 1924 do hereby order that on and after the date of the Act of Parliament confirming this Order the following provisions shall have effect :—

- (1) All banns of matrimony and marriages published and solemnized in the church of Saint John in the parish of Shotley in the county of Northumberland and the diocese of Newcastle between the twenty-ninth day of August one thousand eight hundred and thirty-seven and the eleventh day of November one thousand nine hundred and thirty-six shall be deemed to have been as valid as if they had been published and solemnized in a church in which such banns might be published and marriages solemnized lawfully :
- (2) A minister who has solemnized any marriage referred to in the first paragraph of this Order shall not be liable to any proceedings for penalties whatsoever or to any ecclesiastical censure by reason of having solemnized such marriage :
- (3) The registers of the marriages so solemnized or copies of the registers shall be received in all courts as evidence of those marriages in the same manner as registers of marriages duly solemnized or copies thereof are by law receivable in evidence.

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